

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 24-16

Samsung Electronics America, Inc.

v.

COSCO Shipping Lines Co. Ltd.

v.

**Samsung Electronics Co., Ltd., Samsung SDS Asia Pacific Pte Ltd., and Samsung
Electronics Logitech Co., Ltd.**

**RESPONDENT'S OPPOSITION TO COMPLAINANT'S
SECOND MOTION TO COMPEL**

INTRODUCTION

Respondent COSCO Shipping Lines Co., Ltd. (“COSCO”), by its undersigned attorneys, respectfully submits this response to SEA’s Second Motion to Compel (Doc. No. 112) (the “Motion”). SEA’s Motion contains many mischaracterizations and bluster, suggesting SEA is seeking a strategic advantage, rather than engaging in good faith, reasonable discovery. SEA’s strategy appears to be due to its own lack of support for allegations in its Verified Amended Complaint (Doc. No. 26).¹ SEA’s motion is predicated on the *false* assertion that COSCO is “intentional[ly]” “withholding” and has “refused” to produce what SEA refers to as “source documents” and other “information.” SEA Mot. at 2, 4, 6. The Motion should be denied.

BACKGROUND

COSCO responded and objected to SEA’s first set of interrogatories and document requests on July 18, 2025. *See* Ex. 1. COSCO has not waived objections to SEA’s requests, including objections about burden and proportionality of requests. *See id.* COSCO has collected and produced approximately 1.6 terabytes of data in the U.S., Korea, and China, and produced nearly 300,000 documents, comprising nearly 1,030,000 pages, including a recent production of supplemental documents requested by SEA on April 3 (COSCO1029299-COSCO1029488).² SEA has had in its possession the vast majority of COSCO’s productions for months. By January 16, 2026, COSCO had produced 973,744 pages of documents, and by February 10, 2026, COSCO had produced 1,023,066 pages of documents. COSCO also completed production of documents from China on April 8, 2026 by producing approximately 3,000 *unredacted*

¹ *See* Doc. No. 103. SEA still refuses to provide basic facts to support allegations.

² That production included relevant COSCO policies and procedures requested by SEA.

documents with families and metadata from China (COSCO1029489-COSCO1046171).³ SEA's long March 23, 2026 letter ("Mar. 23 Letter") addressed a number of issues, as did COSCO's April 3 response letter ("Apr. 3 Letter").

LEGAL STANDARD

SEA has the burden of proving that information and documents sought are relevant⁴ and that COSCO's productions are incomplete.⁵ When evaluating a motion to compel, courts and agencies must consider the relevance of the information requested and "proportional[ity]." 7 Moore's Fed. Practice – Civil § 37[2][a]; 46 C.F.R. § 502.141(e)(2)(ii). "[A] motion to compel must be denied if," *inter alia*, "[t]he discovery sought is unreasonably cumulative or duplicative" or "[t]he discovery sought can be obtained from some other source that is more convenient, less burdensome, or less expensive." 7 Moore's Fed. Practice – Civil at § 37[2][d]; 46 C.F.R. § 502.141(e)(2)(ii)(A). "Courts do not demand perfection in responding to discovery requests, particularly when it comes to the production of electronically stored information." *Adidas Am., Inc. v. Thom Browne, Inc.*, 742 F. Supp. 2d 352, 364 (S.D.N.Y. 2024). All that is required is "that a party conduct a 'reasonable search' for documents in response to a request, not that they boil the ocean to ensure every potentially responsive item is produced." *Id.* (citation omitted). The FMC's rules require production of documents "in the responding party's possession, custody, or

³ SEA asserts that its prior Motion to Compel (Doc. No. 95) is "more necessary than ever," but SEA requested an order directing COSCO to identify documents located exclusively in China and produce them by a date certain. COSCO did that. SEA's request is moot.

⁴ SEA's assertion that production of documents by COSCO constitutes an "admission" (SEA Mot. at 5) that they are responsive and relevant is clearly erroneous. *See, e.g., Heller v. City of Dallas*, 303 F.R.D. 466, 489 (N.D. Tex. 2014).

⁵ *TZ SSE Buyer LLC v. COSCO Shipping Lines Co., LTD*, 2025 WL 1454511, at *4 (ALJ May 15, 2025); *Williams v. Ct. Servs. & Offender Supervision Agency*, No. 08-CV-1538 (RWR-AK), 2013 WL 12321547, at *2 (D.D.C. Mar. 25, 2013); *Alexander v. F.B.I.*, 186 F.R.D. 154, 159-60 (D.D.C. 1999).

control,” meaning that COSCO cannot be compelled to produce documents from a third party (or nonparty).⁶

ARGUMENT

A. SEA’s Motion is procedurally improper and should be denied in its totality.

1. SEA did not include copies of discovery requests or responses.

Rule 150 requires a party filing a motion to compel to include copies “of the discovery requests that have not been answered ... incomplete responses have been given” and a “copy of the disclosure, answer, or response in its entirety.” 46 C.F.R. § 501.150(a)(2)(ii)-(iv). SEA did not include those in its *new* Motion.

2. SEA’s Motion is not ripe and granting it would violate due process.

SEA did not attempt to confer with COSCO about several matters raised in its Motion. *See* SEA Ex. B-3 at 57 (54:31). In its Mar. 23 Letter, SEA raised issues it never previously identified nor conferred with COSCO: invoices, job orders, and sea waybills; third-party agreements; “electronic database records” with “charge and chassis data”; and subcontractor or third-party agreements. Further, at the April 6 status conference,⁷ SEA asserted a request and complaint about communications with railroads and SEA’s CNTs.

SEA acknowledged it should meet and confer with COSCO at the status conference. *See* SEA Ex. B-3 at 42–43 (28:01), 57 (54:31). COSCO proposed a meet and confer, at SEA’s convenience, on April 7, 2026. *See* COSCO Ex. 2. SEA refused, asserting that the letters and

⁶ *See Owens-Hart v. Howard Univ.*, 317 F.R.D. 1, 6 (D.D.C. 2016); *Lowe v. District of Columbia*, 250 F.R.D. 36 (D.D.C. 2008); *Doe v. District of Columbia*, 231 F.R.D. 27 (D.D.C. 2005).

⁷ SEA raised this issue for the *first* time in the April 6 status conference, after recognizing that its complaints about invoices were unreasonable because it received all invoices issued by railroads and its CNTs in the ordinary course of business. *See* SEA Ex. B-3 at 38–39 (20:57), 46 (35:44), 47 (38:14). SEA admitted it “received” those invoices. *Id.* at 45–46 (34:47).

status conference were sufficient. *See id.* SEA is incorrect as a matter of law.⁸ There is a chasm of uncertainty that SEA has not even attempted to bridge. *See* SEA Ex. B-2 at 21 (SEA is seeking irrelevant policies); 22 (SEA’s *own* data shows only 531 charges attributed to COSCO); 26-27 (SEA has not identified production errors or relevant “third-party agreements”). SEA admitted there may be miscommunication or misunderstanding that should be resolved. SEA Ex. B-3 at 42–43 (28:01).

Granting the Motion would violate COSCO’s due process rights because SEA did not provide reasonable notice or sufficient opportunity to COSCO to address all of the issues raised by SEA.⁹ First, SEA’s Motion includes matters not discussed in the April 6 status conference, even though the Presiding Officer limited the contemplated motion to issues discussed in the conference. SEA Ex. B-3 at 70 (1:19:13). Second, SEA had weeks to consider and potentially draft its Motion, but COSCO, without the benefit of meeting and conferring to try to understand some of SEA’s complaints, only had 24 hours to carefully review SEA’s Motion and provide a response.¹⁰ Third, this is a complex case, with complicated discovery regarding more than 22,000 alleged charges, and SEA’s Motion seeks to assign legal “responsibility” to COSCO

⁸ *See* 46 C.F.R. § 502.150(a)(2)(i); *Rodriguez v. Burnside*, 38 F.4th 1324, 1335 (11th Cir. 2022); *Kalis v. Colgate-Palmolive Co.*, 231 F.3d 1049, 1059 (7th Cir. 2000); *In re Avandia Mktg.*, 415 F. Supp. 3d 498, 503-504 (E.D. Pa. 2019); *Walker v. District of Columbia*, 317 F.R.D. 600, 604 (D.D.C. 2016). The “professional obligation permits the filing of a motion to compel only when a genuine impasse has been reached and further negotiation would be pointless.” *In re Avandia Mktg.*, 415 F. Supp. 3d and 503-504. An exchange of letters does not suffice. *See, e.g., Naviant Mktg. Solutions, Inc. v. Larry Tucker, Inc.*, 339 F.3d 180, 186 (3d Cir. 2003); *Hays v. Adam*, 512 F. Supp. 2d 1330, 1334 (N.D. Ga. 2007).

⁹ Notice of the bases for a motion to compel “must comport with the requirements of due process,” and when the “character of the dispute is complex” or “its resolution could have significant implications for other aspects of the case,” there must be sufficient “time to give the matter the appropriate level of consideration.” 7 Moore’s Fed. Prac. – Civil § 37.05[3].

¹⁰ Due to the extremely limited time to review and complete a response to SEA’s Motion, COSCO had insufficient time to carefully consider, let alone prepare and execute, a declaration related to efforts regarding multiple issues described in SEA’s Motion.

affecting the merits of the case.¹¹

B. SEA erroneously asserts that COSCO is withholding “source documents.”

As COSCO originally objected, SEA’s RFP No. 3 is overly broad and not proportionate. Nevertheless, it is not true that COSCO intentionally withheld invoices, job orders, or sea waybills. *See* SEA Ex. B-3 at 21-23. Moreover, SEA has not conferred with COSCO with respect to its new demands, insisting that COSCO produce its agreements with railroads for the first time at the status conference held on April 6, 2026. Although COSCO produced third-party agreements, it has not waived its objections that the request is overly broad and not proportionate. SEA’s argument that COSCO subcontracted rail terminals or SEA’s truckers who issued invoices for storage or other services rendered to SEA, and is therefore “responsible” for invoices it did not issue or collect (or ever possess), is similarly improper in a discovery motion.

Despite SEA’s legerdemain attempt to persuade the Presiding Officer to order COSCO to produce documents it somehow “issued indirectly” (Mot. at 2),¹² COSCO cannot produce what it does not have.¹³ Moreover, SEA should already possess any invoices it paid, as is evident from SEA’s own production. *See* Ex. 5.¹⁴ As the Apr. 3 Letter states, in Exhibit 4 attached hereto, column B (“Vendor”) shows that COSCO did not issue all the invoices SEA claims it paid. COSCO produced the invoices it issued.

¹¹ SEA has also violated the Protective Order (Doc. Nos. 67-68) and the FMC’s rules by filing multiple documents designated “Confidential” as exhibits. *See* SEA Ex. B-4 – B-10; 46 C.F.R. § 502.5. SEA did not seek COSCO’s permission to make them public.

¹² SEA cites only its own March 23 Letter to support its position that for the claims in question COSCO “selects the motor carriers for store door moves” albeit that is plainly in contradiction to the requirements of the service contracts and tariff governing the relevant transportation.

¹³ SEA must be aware of this, as its affiliates’ 2020 RFQ for Ocean Freight and the resulting FMC-filed service contract under which all the cargo in question moved states: “Storage should be included into DEM [demurrage], and storage to be acceptable only when it’s directly billed from Port Authority/Rail company.” Exhibit 3 at p. 16.

¹⁴ “Carrier” in this context refers to the motor carrier, not the ocean carrier.

COSCO searched for and produced at least 3,273 job orders; as SEA appears to be aware. Job orders can contain more than one container¹⁵ and numbers alone do not necessarily indicate a deficiency in production. Similarly, COSCO searched for and produced sea waybills after performing a diligent search of its records; it did not intentionally withhold documents. As SEA appeared as consignee on each of these documents, SEA or its affiliates should have them. Requiring COSCO boil the ocean to search for documents it already collected and produced is unduly burdensome, inefficient, and not required by the rules.

C. SEA’s complaints about “electronic database records” were already addressed in prior briefing and are improper.

SEA again asserts that COSCO has not produced “electronic database records.” *See* Mot. at 6-7. SEA’s prior Motion to Compel (Doc. No. 95) addressed this issue as did COSCO’s Response (Doc No. 102). *See* Doc. No. 102 at 9-10.¹⁶ Seeking to improperly¹⁷ add new arguments to its prior Motion to Compel, SEA asserts that COSCO1029398 (SEA Ex. B-4) confirms that other unspecified data exists regarding SEA, but SEA does not show how data related to *exports* contained in COSCO102938 are relevant to shipments by COSCO or why COSCO should be compelled to *create* a report with more data. Further, as SEA acknowledges, that document was produced by COSCO on April 3, 2026 as part of the policies and procedures produced by COSCO. SEA certainly has not sought to meet and confer with COSCO or clarify the purpose or content of that document. *See also* Section D, *infra*.

¹⁵ Because SEA has not conferred and raises for the first time an assertion that “hard copies contain information that is not in the data produced”, COSCO is baffled by the meaning of this statement and cannot reasonably respond to it.

¹⁶ “A party cannot be required prepare or cause to be prepared, documents not already in existence solely to satisfy the requests of an opposing party.” *Ascom Hasler Mailing Systems, Inc. v. USPS*, 267 F.R.D. 1, 8 (D.D.C. 2010) (cleaned up). *See also* Doc. No. 102 at 9-10 & nn.9-10; 46 C.F.R. § 502.141(e)(2)(ii)(A).

¹⁷ *See* SEA Ex. B-3 at 70–72 (1:19:23-1:21:10).

D. COSCO produced charge, chassis, and diversion data.

SEA's Motion fundamentally mischaracterizes the nature of its discovery requests. SEA does not seek production of existing documents — it seeks to compel COSCO to *create entirely new*, customized reports by extracting, cross-referencing, and compiling over 100 data fields¹⁸ from COSCO's systems across 6,432 containers/shipments. *See Ascom*, 267 F.R.D. at 8.

COSCO has already undertaken extraordinary efforts to respond to SEA's requests. COSCO responded to SEA's Interrogatories Nos. 2 and 3 in the form those requests demanded: a spreadsheet (COSCO0624910), which COSCO created *entirely from scratch* which took approximately two months of multi-COSCO department efforts to compile. COSCO provided COSCO1029252 and COSCO1029254, two additional highly customized reports. Underlying information SEA requested has also been produced by COSCO in extensive document production, including invoices, bills of lading, service contracts, and communications.

SEA's (false) assumptions that the requested data can be generated essentially with the mere push of a button is false. Extracting and reconciling data across these legacy and current platforms requires manual cross-referencing across more than 100 modules/data fields just in COSCO's current system; adding its legacy system takes even longer. Certain categories of "key information" SEA now demands — including vessel discharge dates, first and last free days, charge rates, applicable tariffs, and invoice reference information— was either provided in the form of extensive document production or is not information that could be extracted in the form

¹⁸ More than 100 data fields exist in COSCO's IRIS4 system and legacy system, IDDS. In addition to request for dozens of data fields requested specifically in Interrogatories Nos. 2 and 3, "and any other data items or data fields generally associated with COSCO shipment records for Containers and kept or maintained in the normal course of business" implying that SEA requests every data field, relevant or not, that exists in COSCO's systems.

requested. COSCO's objections, which it has not waived, of overbreadth, vagueness, and undue burden are well-founded.

Regarding chassis, SEA's assertion that COSCO was "responsible for delivering SEA's containers to inland destinations" and "responsible for securing sufficient chassis" are a contested positions on the merits of SEA's claims, unrelated to any request for the production of documents, and an Order determining who was "responsible" in response to a motion to compel is therefore improper.

Nothing in the applicable service contracts, tariffs, or bills of lading required COSCO to provide chassis to SEA's CNTs. SEA's assertion that "COSCO's own policy documents indicate that it requires truckers to communicate regarding alternative chassis usage and returns" is not supported by reference to any COSCO policy document. The COSCO document SEA cites to—COSCO0527368—involved a COSCO House Trucker and not a CNT. That COSCO may have received periodic chassis supply data from chassis providers is irrelevant to whether COSCO was "responsible" for providing chassis to SEA's CNTs. Nevertheless, COSCO produced communications in its possession relating to chassis for SEA's shipments. SEA's demand for the *creation* of additional reports in response to interrogatories is unduly burdensome.

SEA's claim that COSCO "produced no information relating to requests for the diversion of containers" is incorrect.¹⁹ COSCO produced relevant diversion requests it received from SEA within its custody and control located after a diligent search of its records. *See* SEA Ex. B-2.

E. SEA produced sufficient documents related to third-parties.

¹⁹ A "diversion request" (also referred to as a request for "change of destination" or "COD") is a request by a shipper for the carrier to re-route a shipment to a new place of delivery after a bill of lading has already been issued.

SEA asserts that all truckers, marine terminal operators, and rail carriers who touched the containers were COSCO “subcontractors.” This does not comport with either the language of the service contracts, COSCO’s tariffs, or the rail tariffs. It is unclear what information SEA believes is relevant to its claims against COSCO, except that rail bills of lading and agreements existed. COSCO conducted a reasonable search to produce UIIA and addenda it had with SEA’s CNTs. Not surprisingly, COSCO did not have written transportation contracts with SEA’s CNTs. *See also Samsung Electronics Am., Inc. v. OOCL*, No. 24-17, 2026 WL 57918, at *14 (ALJ Feb. 20, 2026) (refusing to require production of third-party contracts).

Without waiving its objections as to burden and relevance, COSCO nevertheless produced its agreements with marine terminals and stevedores. COSCO collected communications from the custodians named by COSCO and by SEA in their initial disclosures and searched them for potentially responsive communications. COSCO did not intentionally withhold any non-privileged, responsive internal or external communications it could locate with respect to SEA’s shipments.

F. COSCO produced sufficient relevant policies and procedures, and SEA has not clearly identified other relevant policies and procedures.

As SEA admits, COSCO produced internal policies and procedures on April 3, 2026. Mot. at 8. Again, SEA has not fulfilled its obligation to meet and confer about those or any other policies or procedures that it may believe are relevant, and COSCO does not waive any objection. SEA’s good faith is again at issue because it apparently seeks policies and procedures that are plainly non-responsive (“Hotel Arrangements for Guests,” “Time Clock Missed Punch Report,” “New Hire/Termination I.T. Process,” and policies and procedures for other VIP customers. SEA Ex. B-2 at 21. And SEA has not demonstrated the relevance of “policies, studies, or agreements with third

parties, such as truckers or terminals” and “non-published policies” in other FMC cases. *See SEA v. OOCL*, 2026 WL 57918. Thus, SEA’s request should be denied. *See id.*

G. SEA fails to identify “production errors” to “correct”

SEA makes a vague and purely speculative assertion that COSCO’s production contains “production errors.” Mot. at 9. SEA only identified one document, however—COSCO0259383 (SEA Ex. B-10)—and COSCO informed SEA that the production of that document was double-checked and there was no error in the production process. *See* SEA Ex. B-2 at 26. COSCO produced the document as it exists in its business records. *See id.* SEA vaguely requests an “ordered review” without any scope or specificity. That is an improper basis for a motion to compel,²⁰ especially since SEA has not met and conferred with COSCO about this issue.

CONCLUSION

For the reasons stated herein, the Motion should be denied in its entirety. The Presiding Officer should reject out of hand SEA’s outrageous request that COSCO’s counsel be ordered to provide “an unequivocal certification” that COSCO has produced “all internal and external communications addressing the basis for the D&D charges and responsibility for those charges.” Mot. at 10. SEA has provided no factual basis or legal authority for such an order and indeed made no such request in its Mar. 23 Letter. Like its overheated rhetoric and incorrect assertions,²¹ its demand underscores the poverty of its claims.

²⁰ *See, e.g., TZ SSE Buyer LLC*, 2025 WL 1454511, at *3 (“Given the vagueness of the question, if I were to order COSCO to provide a supplemental answer, it is not clear what additional details I would order them to provide.”).

²¹ Apart from other examples previously discussed, SEA’s incorrectly asserts that *SEA v. OOCL* is a “companion case” and “instructive.” Mot. at 5. That action involves a different carrier and different shipments, and different findings.

Dated: April 8, 2026

Respectfully submitted,

/s/ Rebecca A. Fenneman

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CERTIFICATE OF SERVICE

I certify that on the 8th day of April, 2026, a true and correct copy of the foregoing document, **Respondent's Opposition to Complainant's Second Motion to Compel**, was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

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